

#	Case Name	
1	Dauod vs. Mercedes-Benz USA, LLC 2025-01482556	Motion to Vacate Plaintiff Omar Dauoud’s motion to vacate order compelling arbitration and request for monetary, evidentiary, terminating, and contempt sanctions is denied. “To discourage delays in arbitrations, Code of Civil Procedure section 1281.97 provides a remedy when a company’s share of the initial arbitration fees ‘are not paid within 30 days’ of the invoice.” (<i>Anoke v. Twitter, Inc.</i> (2024) 105 Cal.App.5th 153, 156.) “Once an employee or consumer initiates an arbitration, the arbitration provider must ‘immediately provide an invoice for any fees and costs required before the arbitration can proceed to all of the parties to the arbitration.’ (Code Civ. Proc., § 1281.97, subd. (a)(2).) ‘To avoid delay’ the arbitration provider must issue the invoices ‘to the parties as due upon receipt,’ unless the agreement states otherwise. (<i>Anoke, supra</i>, 105 Cal.App.5th at pp. 158-159.) However, court have held that these statutes must be construed consistently with California’s longstanding anti-forfeiture principles and do not automatically extinguish a party’s contractual right to arbitrate based upon every untimely payment of arbitration fees. (<i>See Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310.) Here, the Court finds Defendant Mercedes-Benz USA, LLC did not forfeit its right to compel arbitration. (<i>Hohenshelt v Superior Court, supra</i>, at pp. 345–346.) The evidence reflects that AAA served the invoice on Defendant’s counsel at an email address that was not Defendant’s designated electronic service address. (See Code Civ. Proc., § 1010.6; Cal. R. Ct. Rule 2.251(b)(1)(A); AAA Rules R-40.) Because there is no evidence that Defendant ever consented, or agreed, to accept service at an alternate address, the Court finds Defendant’s failure to pay the invoice within 30 days was not willful, fraudulent, or otherwise grossly negligent. Absent finding a material breach of the arbitration agreement, the Court also finds the imposition of sanctions is also not appropriate. Defendant shall give notice of the ruling.

		ADR Review Hearing Continued to 3/22/27 at 9:00 a.m.
2	Di Lorenzo vs. Asset Collection Enforcement Services, Inc. 2026-01551839	Demurrer to Complaint Motion to Strike Complaint Continued to 11/16/2026
3	Hart vs. Providence Mission Hospital - Laguna Beach 2024-01451053	Motion for Summary Judgment and/or Adjudication Off Calendar
4	Mazroey vs. Dauger 2026-01552318	Motion to Strike - Anti SLAPP The Court will hear argument. Case Management Conference
5	Sunnyside Cremation and Funeral Inc. vs. California Mortuary Group, Inc. 2020-01169105	Motion for Summary Judgment and/or Adjudication The Court will hear argument.